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11.10 Introduction

Any Medicaid applicant or recipient has the right to request an appeal of any decision by CLTC which adversely affects the eligibility status and/or receipt of services and/or assistance. The formal process of review and adjudication of CLTC actions/determinations is done under the authority of Section 1-23-310 et. seq., Code of Laws, State of South Carolina, 1976, as amended, and the Department of Health and Human Services regulations Section 126-150, et.seq.

11.20 Appeals Policy and Procedure

11.21 SCDHHS Pre-Hearing Conference Order

Purpose of Pre-Hearing Conference:

- Allows an opportunity to discuss issues being appealed prior to a hearing.
- Offers an opportunity for the parties to come to a mutual agreement and avoid an appeal hearing.
- Allows SCDHHS to explain the policy or regulations which support why the decision was made.
- Allows Petitioner (applicant, participant or Authorized Representative) to provide any additional or clarifying information related to the appeal.
- Allows CLTC/SCDHHS to offer alternatives/community resources.

Procedure:

- **Pre-Hearing Conferences are ordered by the assigned Hearing Officer.**
- The conference may be held in person or by phone, unless otherwise specified in the Hearing Officer's order.
- The conference must be held timely for all parties to meet the deadlines set by the Hearing Officer regarding completion of the conference and providing a response.

Note: The Petitioner and the Respondent are required to submit a written summary of the conference. The Petitioner must be given adequate time to write and mail the summary to the Hearing Officer.

- Read the order carefully as the Hearing Officer may request other information.
- The CLTC/SCDHHS representative (**Area Administrator, Lead Team or Central Office Designee**) contacts the Petitioner (applicant, participant or designated representative) if the Hearing Officer's order so states to schedule the pre-hearing conference.
- At the pre-arranged time, the **CLTC representative** will contact or visit the applicant or participant and include the Petitioner, if other than the

applicant/participant.

- During the conference, **CLTC representative** will address all points listed in the pre-hearing conference order.
- At the conclusion of the conference, the **CLTC representative** will determine whether or not the Petitioner wishes to continue with the appeal.
- Following the conference, the **CLTC representative** will write a summary of the conference.
- The **CLTC representative** will mail a copy of the summary to the Petitioner by regular and certified mail and will send a copy of the summary to the Hearing Officer and the **Central Office Designee** by email, interagency mail or regular mail by the deadline indicated in the order.

Pre-Conference Hearing Summary: Pre-hearing Conference

Will be written on Agency Letterhead and must include the following:

1. Conference participant and location (i.e., telephone, participant's home, etc.)
2. Points discussed
3. Solutions reached
4. Any outstanding issues
5. Any additional information requested by the Hearing Officer
6. All parties to whom a copy of the summary was sent and by what means.

11.22 Appeals - Level of Care and Waiver Services

An applicant or participant designated representative who disagrees with a level of care decision made by SCDHHS has the right to request an appeal of the decision. A participant or Authorized Representative has the right to request an appeal of SCDHHS's/CLTC's decision to deny, reduce, suspend, or terminate a waiver service.

To initiate the appeal process, an applicant, participant, or Authorized Representative must submit a request stating the issue to be appealed including a copy of the CLTC Notification Form issued. The request must be sent to the Division of Appeals and Hearings no later than thirty (30) days from the receipt of the notification.

Appeals must be submitted online at www.scdhhs.gov/appeals; or by
fax at (803) 255-8251;
or by **via mail to:**
Division of Appeals and Hearings Post
Office Box 8206
Columbia, South Carolina 29202-8206
or verbally by calling-1-888-549-0820

A participant may be eligible to receive continued benefits/services pending an appeal hearing decision. If the participant is interested in continued benefits while an appeal is pending, the participant or Authorized Representative must request a hearing and provide notification to the assigned CLTC case manager prior to the date of action indicated on the CLTC Notification Form.

A participant may be eligible to have services reinstated pending an appeal hearing decision. If the participant is interested in reinstating benefits, the participant or Authorized Representative must request a hearing and request reinstatement of services within ten (10) calendar days after the date of action indicated on the CLTC Notification Form. The participant/ Authorized Representative must notify the assigned CLTC case worker of this request.

Service will not be resumed or reinstated while the case is pending an appeal hearing if the date of action has passed.

If the Hearing Officer's decision is not in the favor of the participant or designated representative, federal regulations allow South Carolina Department of Health and Human Services to seek payment of the cost of Medicaid benefits received while waiting thirty (30) calendar days of receipt of the CLTC Notification, CLTC's decision will be final and binding. A request for a fair hearing by mail is considered filed if postmarked by the thirtieth (30th) calendar day following receipt of the CLTC notification.

Information regarding the individual's right to appeal and instructions for initiating an appeal are printed on the Level of Care Certification DHHS Form 185 and the CLTC Notification Form 171.

Once an appeal has been arranged, the Hearing Officer will notify the CLTC Area Office and/or the SCDHHS Central Office of the date, time and location of the hearing. The CLTC Area Office is primarily responsible for organizing CLTC's presentation at the hearing. SCDHHS Central Office will provide technical assistance to staff in preparation for the hearing.

In hearing a contested case, a subpoena may be issued for the attendance and testimony of witnesses and the production and examination of records. If a subpoena is needed, the CLTC Area Office must **notify SCDHHS Central Office ten to fifteen (10-15) days** prior to the date of the hearing. It is best if the witness will come to the hearing on a voluntary basis, but if in doubt, the subpoena should be requested by the CLTC Area Office. The CLTC Area Office should alert the witness that the subpoena will be served.

Note: If a CLTC staff person or contract Case Manager is subpoenaed, follow the agency subpoena policy.

There will be times when legal representation will be needed. SCDHHS Central Office should be notified so a request can be sent to the SCDHHS Office of General Counsel. The attorney must have time to review the case and make contact with the appropriate parties.

Upon receiving a copy of an Appeals Notification Letter that was sent to the participant/ Authorized Representative by the SCDHHS Division of Appeals and Hearings, the **Area Administrator will:**

- Review the case with the **designated Lead Team** to ensure the **Nurse Consultant or Case Manager** has followed appropriate procedures.
- Inform the appropriate **Nurse Consultant or Case Manager** and **designated Lead Team** of the date, time, and location of the hearing.

The **designated Lead Team** and/or **Area Administrator:**

- Meets with **the Nurse Consultant or Case Manager** to discuss the appropriate actions to take in presenting the case at the hearing.
- Reviews the case for the possible need for subpoena of record or legal representation at the hearing. If a subpoena is necessary, notifies SCDHHS Central Office.
- Contacts SCDHHS Central Office staff if legal representation is to be requested or if there are any questions.

The assigned **Nurse Consultant or Case Manager:**

- Completes an appropriate summary, and
- Routes case file with completed appropriate summary to **designated Support Staff** with instructions of information to be mailed:

For an appeal of a level of care decision the following must be sent to the Hearing Officer:

1. Assessment
2. Medication List
3. Physician's Input Letter, if applicable
4. CLTC Medical Consultant's level of care determination, if applicable

5. Narrative
6. Level of Care Certification DHHS Form 185 or CLTC Notification Form 171
7. The Guideline for Developmental States for applicants/participants under 6 years old.
8. Copy of the Policy, Scope of Service or other CLTC document which supports the Agency's decision. For example, Quick Reference Level of Care Guide.

Copies must be made for the State Agency representative, the Hearing Officer and the Petitioner (Applicant, Participant or Authorized Representative).

Note: The Hearing Officer will issue a hearing order or notice. The order or notice should be closely followed as to the documentation needed prior to the hearing. Procedural questions may be directed to the Hearing Officer.

For an appeal of a decision to deny, terminate, reduce, or suspend waiver services, the following must be sent to the Hearing Officer:

1. CLTC Notification Form 171 including the Appeals Notice.
2. Written summary on Agency Letterhead of services terminated,
3. Other pertinent information such as medical records, Service Provision Forms and/or service plan(s).
4. Copy of the CLTC Policy, Scope of Service or other CLTC document which supports the decision.

Copies must be made for the State Agency Representative, the Hearing Officer and the Petitioner/Representative. The copies must be brought to the appeals hearing. The information packet for the Hearing Officer must be sent as soon as possible to the Division of Appeals and Hearings by Interagency mail, email or certified mail.

NOTE: During the appeal process, any information shared or discussed with the Hearing Officer must also be shared with the petitioner. Ex parte communication with the Hearing Officer is prohibited

The assigned **Nurse Consultant or Case Manager:**

- Prepares a summary on Agency Letterhead of case actions from Intake to formal denial.

- Consults with designated **Lead Team, Area Administrator**, and SCDHHS **Central Office**, as needed.
- Meets with SCDHHS Central Office or Office of General Counsel staff before the hearing, if necessary.

11.22.10 Appeals Presentation

The Designated State Worker(s) (**Nurse Consultant, Lead Team Case Manager** and/or **Area Administrator**) will present the case at the Appeals Hearing, as appropriate. If the assigned **Case Manager** is a contract worker, the **Lead Team Case Manager** or the **Area Administrator** will represent the Agency. If the **Area Administrator** decides a contract **Case Manager** should attend the hearing, **SCDHHS Central Office** should be notified.

The Hearing Officer's decision will be sent to the CLTC Area Office and SCDHHS Central Office by mail or email following the hearing. If the Agency's decision is **AFFIRMED**, this means the decision was in the Respondent's (Agency's) favor. If the Agency's decision is **REVERSED**, this means the decision is in favor of the Petitioner's (applicant's, participant's or Authorized Representative's).

The **designated Lead Team**

- Confers with SCDHHS Central Office regarding any post-Appeal actions.
- Attends the hearing if necessary.

SCDHHS Central Office

- Attends the hearing if necessary.
- Communicates any post-appeal actions required based on the Appeal Hearing decision to the CLTC Area Office and/or Medicaid Eligibility.

11.30 Subpoena Policy

If a CLTC employee, provider Case Manager, or program representative receives a subpoena requesting CLTC/SCDHHS provide documents to a court, or appear in court to testify, or complete any documents, the CLTC Area Office Administrator must be notified immediately. The Area Administrator will contact SCDHHS Central Office and SCDHHS Office of General Counsel to inform the Agency of the subpoena being served and to seek guidance as to actions required. A copy of the subpoena will be sent to SCDHHS Central Office and SCDHHS Office of General Counsel as soon as it is received in the Area Office. The SCDHHS Central Office Designee will coordinate any actions needed with the CLTC Area Office and the Office of General Counsel.

11.40 Release of Participant Information

No participant information may be released without prior approval of SCDHHS Central Office and/or SCDHHS Office of General Counsel. Under most circumstances, the information contained in applicant/participant records is protected by state and federal laws or regulations and may not be provided without specific written authorization of release. This authorization is a separate document from the CLTC Consent Form. Unauthorized release of this information may be considered a misdemeanor punishable by fine, imprisonment or both.

- The CLTC Area Office Worker receiving the request for information should ask for and receive a copy of any required written authorization and seek guidance from the **CLTC Area Office Administrator**.
- The requestor's identity must be verified. Faxed authorizations are acceptable.
- The **Area Administrator** will seek approval from the **SCDHHS Central Office Designee** via email and will include any required authorization of release as an attachment. The Office of General Counsel may be contacted directly by the **Area Administrator** by email.
- The email should include any authorization of releases as an attachment and the email should be copied to the **SCDHHS Central Office Designee**.

Each CLTC Area Office should select a designee who will be responsible for logging information regarding release of information on the CLTC Area Office tracking log. This log must be submitted monthly to the **Central Office Designee**.

- Once approval is received to release the information, the **Area Administrator** will notify the state worker designated to maintain the tracking log of the request approval, the purpose of the release of information and the full name of the person to whom the information is being provided.
- The **designated State Worker** will log the required information on the tracking form.

Note: In some cases, the Office of General Counsel will provide the information directly, especially if the requesting entity will be charged for processing the request. The Office of General Counsel will maintain a log of those requests in their office.

- The **CLTC Area Office Worker** will print the requested information and either fax or mail it to the requesting party. The information may be provided in person if the participant is in the CLTC Area Office.
- The **CLTC Area Office Worker** will document the request, approval and release of the information in the Participant's narrative. The type of information released must be indicated in this documentation.

- Any required authorization for release of information must be scanned into Phoenix under the Participant’s “Scans” tab and the hard copy will be maintained in the Participant’s file.

NOTE: During the appeal process, any information shared or discussed with the Hearing Officer must also be shared with the petitioner. Ex parte communication with the Hearing Officer is prohibited.